

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: appellee merits brief separating factual-sufficiency dismissal from legal affirmance.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Ellison response

Response Brief of Appellee Mara Ellison

Filed April 15, 2026.

The district court made no finding that Mara Ellison's account is historically true. It held that a jury could credit her and then decided the qualified-immunity question on that supported version. Officer Nolan Rusk's appeal must be divided the same way.

This Court lacks interlocutory jurisdiction over Rusk's request to infer greater danger from camera movement, contact sounds, and the officers' positions. That request challenges the sufficiency and weight of evidence concerning fourteen hidden seconds. The Court should dismiss that portion without deciding whether Ellison struck a forearm or reached toward a duty belt.

The remaining legal question is properly reviewable. Assume Ellison was unarmed and distressed, pulled from painful wrist control, committed no crime, did not strike, grab, flee, or reach for equipment, and posed no immediate danger. On those facts, a five-second drive stun imposed during a forcible takedown was disproportionate and violated law clearly established by February 3, 2025. JA242–JA253.

The Court should affirm that conditional legal ruling. Its judgment should preserve Rusk's right to present his historical account at trial and Ellison's equal right to have a jury decide it.

Statement of appellate jurisdiction

Ellison agrees that a qualified-immunity denial is immediately reviewable to the extent it turns on a question of law. *Mitchell v. Forsyth*, 472 U.S. 511, 526–30 (1985). Rusk filed a timely notice from the January 9 order, and this Court may decide whether the district court's stated plaintiff-favorable facts amount to a violation of clearly established law. JA242–JA275.

The Court lacks jurisdiction, however, to reconsider whether the summary-judgment evidence can support those facts. *Johnson v. Jones*, 515 U.S. 304, 313–20 (1995). *Barricks v. Wright*, No. 25-1250, slip op. at 6–8, 12 (4th Cir. Mar. 3, 2026), applies that boundary directly: accept the facts identified below, dismiss an evidence-sufficiency target, and decide any separable legal immunity issue.

Rusk's ninth opening-brief section asks this Court to assemble movement, unattributed sounds, and post-obstruction positions into a more dangerous form of resistance. That is an inference about what occurred, not a legal consequence of accepted facts. The district court expressly found the recordings nonconclusive. JA246–JA248. Dismissal of that argument leaves a live and fully framed question of law. Ellison therefore seeks a mixed disposition rather than dismissal of the entire appeal.

Questions presented and standards

The jurisdictional question is whether Rusk's media submission genuinely accepts Ellison's version or instead asks the Court to replace it with a defense-favorable factual inference.

Appellate jurisdiction is reviewed independently. The Court may inspect the district opinion and record to understand the issue, but not to conduct its own credibility or sufficiency determination.

The legal question is whether, on the facts assumed at JA249–JA251, Rusk violated the Fourth Amendment and a right clearly established when he acted. That issue is reviewed *de novo*. The facts and reasonable inferences remain those of the nonmovant. *Tolan v. Cotton*, 572 U.S. 650, 656–60 (2014).

Objective reasonableness depends on the totality viewed from the scene, including offense severity, immediate threat, resistance, flight, force magnitude, and changes over time. *Graham v. Connor*, 490 U.S. 386, 396–97 (1989). Clearly established law must be particularized, but a prior case need not reproduce every mechanical detail when existing decisions make the constitutional line apparent. The notice inquiry uses authority available by February 3, 2025. Later cases may guide present adjudication without supplying retroactive warning.

The fixed chronology

Iris Ellison called at 19:42:11 for assistance with Mara's medication and mental-health crisis. She reported no weapon, violence, or crime. Officers were dispatched at 19:47:36. Rusk arrived with his body camera active at 19:52:14 and encountered Mara seated in the exterior breezeway at about 19:52:48. Her empty hands were initially visible. JA32–JA50, JA69–JA82.

Rusk grasped Ellison's left wrist at approximately 19:53:02 and concedes a seizure by that point. Around 19:53:11, the recording captures his command to stop pulling and her complaint that he was hurting her. One drive-stun cycle ran from roughly 19:53:16 through 19:53:21 while Rusk forced her down. The view cleared at about 19:53:22, and handcuffing ended near 19:53:37. JA69–JA106.

No second activation or post-cuff strike occurred. Medical examination documented a wrist abrasion, two superficial contact burns, and shoulder strain without fracture. JA51–JA68, JA151–JA159. These points define timing and magnitude. They do not answer the disputed question whether Ellison struck Rusk or moved toward his belt during the obscured interval.

The disputed center remains genuinely disputed

Ellison testified that the wrist grasp hurt, causing her to recoil and pull. She denied hitting Rusk, touching his belt, reaching for equipment, attempting escape, or threatening either officer.

JA107–JA117. Rusk testified that she actively twisted, struck his forearm, and directed a hand toward his duty belt. JA118–JA130. Those accounts cannot both describe the decisive movements.

Vega saw rapid body motion but could not reliably see the hands relative to Rusk's forearm or equipment. She heard no threat and observed no weapon. JA141–JA150. The experts likewise cannot supply personal knowledge. Crane addresses visibility; North and Pike offer conditional practice opinions keyed to different assumed conduct. JA160–JA186.

The district court found that a reasonable jury could accept either principal witness. It did not credit Ellison over Rusk, treat the absence of a weapon as disproving contact, or infer that reported soreness established a blow. JA245–JA248. That careful sufficiency ruling matters only to identify the assumed facts for legal review. It is not a finding this Court should affirm, reverse, or refine on interlocutory appeal.

The recordings do not trigger Scott

From 19:53:08 through 19:53:22, close bodies and clothing materially block Rusk's camera. Vega's angle is interrupted by the railing, Rusk, and the participants' relative position. No dependable continuous view places Ellison's hands against Rusk's forearm or belt. JA77–JA101, JA170–JA178. Authentication proves the exports are genuine; it does not prove that they depict what lies behind an obstruction.

The audio establishes a pulling command, a complaint of pain, and movement sounds. It cannot attribute a particular noise to a hand, forearm, shoe, railing, or equipment item. The district court therefore correctly concluded that this is not the rare recording that blatantly contradicts the nonmovant under *Scott v. Harris*, 550 U.S. 372, 378–81 (2007). JA246.

Rusk now concedes no frame shows the alleged strike or reach. His proposed mosaic—movement before obstruction, camera acceleration, commands, sound, and positions afterward—requires inference. The district court already assumed Ellison pulled. The only purpose served by characterizing that pulling as more dangerous is to alter threat and resistance in Rusk's favor. *Johnson* and *Barricks* forbid that evidentiary reassessment here.

The assumed facts establish excessive force

The assumed encounter began with a noncriminal protective call. No weapon, offense, violence, flight, or threat preceded the seizure. Two officers faced one distressed person whose hands had been empty. Although Rusk lawfully sought control, the governing assumptions leave only noncompliance and pulling from a painful grip. JA249.

Pulling can justify responsive physical control. It does not erase the need to match pain and injury to the danger reasonably perceived. *Estate of Armstrong ex rel. Armstrong v. Village of Pinehurst*, 810 F.3d 892, 901–05 (4th Cir. 2016), rejects the notion that resistance and immediate danger are interchangeable, especially during a protective mental-health seizure.

Rusk intentionally applied electrical pain for five seconds as he forced Ellison down. The fact that he stopped after one cycle is relevant, but it cannot justify starting the cycle when the assumed person posed no immediate safety risk. The simultaneous takedown adds to the force rather than converting it into a harmless control cue. Under *Graham's* totality, the low governmental interest and meaningful force are badly mismatched. The district court correctly identified a Fourth Amendment violation without relying on hindsight or a least-intrusive-means rule.

No immediate threat supported electrical pain

Immediate threat carries special weight because force protects officers and others from danger. Here the assumed facts eliminate the conditions that could create it: Ellison did not strike, grab, reach toward equipment, hold a weapon, threaten, or try to flee. She was distressed and pulling, but neither status is a substitute for a concrete safety risk.

Rusk emphasizes the breezeway railing and close quarters. Those environmental facts could matter if paired with movement toward a fall, escape, attack, or weapon. The district court's assumptions include none of those events. A setting cannot create danger by itself when the person is merely trying to withdraw a painfully held wrist.

Two officers were present. Vega was close enough to assist and moved to control the hands when the view cleared. JA90–JA101. Officer numbers do not decide reasonableness, yet they inform whether a five-second electrical application corresponded to an urgent need. No bystander faced danger and no crime required immediate arrest. On this factual set, maintaining hands-on control may have been reasonable; escalating to a drive stun during a forcible descent was not.

Distress and pulling require calibrated tactics

Ellison does not propose a categorical immunity from force for people experiencing mental-health crises. Officers may prevent harm, complete a lawful seizure, and respond to actual danger. Distress matters because it helps explain delayed compliance and raises the importance of distinguishing protective resistance from violent conduct. The dispatch information gave Rusk that context before contact. JA32–JA38.

The assumed pulling was physical resistance in an ordinary-language sense. *Armstrong* teaches that the constitutional question remains proportionality to danger. 810 F.3d at 904–05. A stationary grip, adjusted control, communication, spacing, or assistance may address resistance that carries no immediate threat. The Fourth Amendment does not compel the least force imaginable, but realistic alternatives illuminate how little urgency supported an electrical escalation.

Rusk's brief repeatedly adds “active,” “moving,” or “close struggle” to the assumed pulling. Those descriptors cannot smuggle the disputed strike and reach back into the legal question. Even if Ellison pulled with purpose, the district court assumed no violent act, escape, equipment access, or immediate safety danger. JA249. The Court should evaluate that defined conduct, not an undefined midpoint between two witness accounts.

Mode and duration do not create a constitutional safe harbor

Contact mode differs from probe deployment, and one cycle differs from several. Those gradations matter. But drive-stun mode is designed to cause pain, the activation lasted five continuous seconds, and it occurred while Rusk was also forcing Ellison to the floor. JA69–JA82. The device left two visible contact burns; the descent contributed to abrasion and strain. JA51–JA63.

Rusk calls the cycle “bounded.” That describes its endpoint, not its justification. A single unnecessary use of meaningful force can violate the Fourth Amendment. The absence of a second activation and force after handcuffing properly narrows Ellison's claim; it does not erase the first cycle.

Nor does a limited injury answer objective reasonableness. The district court used the medical record to describe physical effect, not as an automatic constitutional threshold. JA249. The question remains whether electrical pain and a simultaneous takedown matched a governmental need. On assumptions excluding immediate danger and serious resistance, it did not. Treating every single cycle as permissible until repeated would allow one full activation without constitutional scrutiny, a rule unsupported by *Graham* or circuit precedent.

The sequence confirms disproportionality

Reasonableness can change from moment to moment. Before wrist control, Ellison was seated and empty-handed. At 19:53:02, Rusk initiated physical restraint. Under her version, the ensuing pull was a pain response rather than an attack. At 19:53:16, he activated the device while forcing her down. By 19:53:22, she was on the floor and Vega was obtaining hand control. JA69–JA101.

The short sequence does not prevent analysis. It identifies when the asserted justification must exist: immediately before and during the cycle. The plaintiff-favorable facts contain no sudden threat at that point. The disputed strike and belt reach could provide one, but they are excluded from this legal inquiry.

Rusk's timing argument assumes that speed itself creates reasonable uncertainty about every movement. Qualified immunity accounts for split-second judgment, but the underlying constitutional test still asks what a reasonable officer faced. When the facts are assumed against the movant, he faced pulling without danger. A rapid but nonthreatening response to painful control does not become dangerous merely because it unfolds over seconds. The district court correctly assessed the force at the moment it was chosen.

Practical alternatives reinforce, but do not define, the violation

The record permits a jury to find that Rusk could maintain or adjust wrist control, communicate, reposition away from the railing, create space, or use Vega's assistance before applying a drive stun. Dr. North addresses those options on Ellison's assumed version. JA160–JA169. Their existence supports the conclusion that the governmental need was modest.

Ellison does not contend the Constitution requires officers to select the least intrusive technique or to predict perfectly which alternative will work. *Graham* allows reasonable choices among lawful responses. But when an officer chooses a substantially more painful response, the availability of ordinary control measures helps expose the lack of proportional safety need.

Pike's defense opinion does not change the assumed-facts analysis. His approval depends materially on a perceived forearm strike and equipment reach. JA179–JA186. North reaches the opposite conclusion when those events are removed. Expert disagreement cannot decide the constitutional question, but it confirms why Rusk may not rely on a conditional defense premise that the district court had to reject for summary judgment. The legal holding rests on the stated no-danger facts, not on judicial selection of a preferred tactic.

Pre-incident law stated the right with sufficient specificity

The district court framed the protected interest around intentional electrical pain lasting five seconds plus a forced descent. Its factual setting was a protective encounter in which an unarmed, distressed subject pulled against wrist restraint but committed no attack or grab, sought no escape, made no equipment movement, and presented no immediate hazard. JA250. That formulation incorporates force, context, conduct, and threat rather than relying on a generalized ban on excessive force.

By February 2025, *Armstrong*, *Smith*, *Meyers*, and *Yates* had drawn a coherent line. Serious pain-producing force must correspond to an immediate safety risk; modest or nonthreatening movement does not justify taser force; and continued or gratuitous force after danger is absent is unlawful. Those cases differ in details because constitutional notice does not demand a prior opinion involving the same railing, device placement, or number of seconds.

Rusk's proposed rule would make nearly every force case novel by changing one mechanical feature. The salient similarity is a noncriminal, nonthreatening person subjected to intentional electrical pain despite resistance that posed no immediate danger. The published circuit decisions made the proportionality boundary apparent to a reasonable officer years before this encounter.

Armstrong gave prospective notice for protective seizures

Armstrong is unusually close in the facts that matter. Officers sought to take a mentally ill person into protective custody, encountered physical resistance, and used a conducted-energy device. The Court held that resistance alone does not justify serious electrical force; danger, not a binary resistant label, controls proportionality. 810 F.3d at 901–05.

Although the *Armstrong* officers received qualified immunity for conduct in 2011, the published 2016 opinion expressly supplied guidance for future encounters. *Id.* at 905–09. Rusk acted almost nine years later. He therefore cannot rely on the immunity result while ignoring the prospective rule that justified it.

The differences Rusk lists make his force less extensive than *Armstrong*'s repeated applications. They do not reverse the shared absence of immediate danger on the facts assumed here. One full pain cycle is still electrical force, and a simultaneous takedown adds physical compulsion. Unlike a rule based only on diagnosis, *Armstrong*'s notice turns on resistance that does not threaten safety. Ellison's assumed pulling falls within that core. Every reasonable officer had warning that a drive stun could not be used merely to overcome it.

Smith, Meyers, and Yates reinforce the same boundary

Smith v. Ray, 781 F.3d 95, 102–04 (4th Cir. 2015), denied immunity where modest movement by a nonthreatening person did not support the officer's escalation. It confirms that a court must describe what movement conveyed, not merely label it resistance.

Meyers v. Baltimore County, 713 F.3d 723, 733–35 (4th Cir. 2013), evaluated taser applications across a changing encounter and withdrew justification when the continuing threat ended. Its sequence analysis supports *Ellison*: the assumed facts never supply the danger needed at the moment of activation.

Yates v. Terry, 817 F.3d 877, 884–88 (4th Cir. 2016), found fair notice that taser force against a nonthreatening subject was unlawful. A traffic stop and different device details do not weaken the principle when *Armstrong* separately addresses protective custody and resistance.

Together, these decisions provided more than a general reasonableness command. They identified the precise constitutional relationship at issue—pain-producing force, nonthreatening movement, and the absence of immediate danger. Rusk's single-cycle distinction may bear on damages and magnitude, but it did not leave the initiation of electrical force legally uncertain.

Zorn is intervening authority and is materially different

Zorn v. Linton, 607 U.S. 568, 570–73 (2026), was decided on March 23 after Rusk filed his opening brief and after the February 3, 2025 encounter. It is intervening authority for this Court's present analysis, but it cannot itself supply clearly established law as of the incident date. Ellison relies on pre-incident Fourth Circuit decisions for notice.

Zorn insists on specificity and rejects an analogy between a repeatedly warned, resistant protester subjected to a routine wristlock and materially more aggressive force discussed in the cases invoked there. That reasoning does not require immunity here. Ellison's assumed conduct was a pain-driven pull during a mental-health seizure, without strike, grab, flight, equipment reach, or immediate threat. Rusk used a five-second electrical pain cycle plus a forcible takedown, not a routine wristlock to move a warned protester.

Most importantly, *Armstrong* involved a protective mental-health seizure, physical resistance, and a conducted-energy weapon. Its prospective warning directly addresses the force-danger relationship here. Applying *Zorn*'s demand for a close factual fit therefore points to, rather than away from, *Armstrong*. The later Supreme Court decision is distinguishable and does not erase notice already supplied by the circuit before Rusk acted.

Barricks confirms the proper mixed disposition

Barricks teaches that a qualified-immunity appeal can contain an unreviewable factual target and a reviewable legal question. The Court should not choose one witness's history, yet it should answer whether the facts assumed below violate clearly established law. Slip op. at 6–12. That is exactly this record.

Rusk's request to derive dangerous resistance from the recordings belongs on the factual side. His alternative argument that one cycle remained legally uncertain belongs on the legal side. Dismissal of the first does not reward artful pleading or deprive an officer of immunity review; it respects the allocation of trial factfinding while deciding the immunity from suit on a lawful premise.

Barricks also evaluates severity, threat, resistance, flight, and changing circumstances without treating an officer's label as conclusive. On Ellison's assumptions, each factor favors her except the limited need to control pulling. Preexisting cases made electrical pain disproportionate to that non-dangerous conduct. Although *Barricks* was issued after this incident and cannot itself create notice, its procedural and analytical framework supports affirmance of the district court's legal conclusion.

Conclusion and certifications

The Court should dismiss for lack of interlocutory jurisdiction the portion of Rusk's appeal that asks it to infer a strike, reach, or greater danger from the obstructed recordings and disputed evidence. It should affirm the denial of qualified immunity on the district court's expressly plaintiff-favorable facts. The disposition should state that no appellate ruling determines whether Ellison or Rusk accurately described the hidden interval.

Counsel certifies that this brief was filed and electronically served on April 15, 2026, the date fixed by the briefing order. Counsel also certifies compliance with applicable type, spacing, margin, and length requirements and continued accuracy of the appellee's disclosure statement.

All district-record citations use the certified appendix sequence. This brief does not rely on generated frames, does not treat audio as conclusive physical attribution, and does not cite post-incident decisions as sources of notice to Rusk. Its discussion of intervening authority is limited to the law governing the Court's present decision.

Respectfully submitted by fictional counsel for appellee Mara Ellison.